

25TRCV01358 25TRCV01358

County: los-angeles

Division: Civil Law and Motion

Department: B

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Case Number: 25TRCV01358 Hearing Date: July 27, 2026 Dept: B

Moving

Parties: Plaintiff Fabricio L. Volpato

Responding

Party: Defendant FCA US LLC

Motion

for Attorneys' Fees, Costs, and Expenses

The Court considered the moving, opposition, and reply papers.

RULING

The motion is GRANTED.

See Order below.

BACKGROUND

On April

28, 2025, Fabricio L. Volpato filed a complaint against FCA US LLC for violations of statutory obligations under the Song-Beverly Consumer Warranty Act as to a 2024 Ram Promaster 2500.

On

December 11, 2025, the Court denied plaintiff's motion for sanctions.

On February

17, 2026, plaintiff filed notice of settlement.

On February

24, 2026, plaintiff filed a memorandum of costs.

LEGAL AUTHORITY

CCP

§1021 states: “Except as attorney’s fees are specifically provided for by statute, the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties; . . .”

CCP

§1032(b) states: “Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding.”

CCP

§1033.5(a)(10)(B) states that attorney fees when authorized by statute are allowable as costs and may be awarded upon a noticed motion pursuant to CCP §1033.5(c)(5).

Civil Code §1794

states, in part: “(a) Any buyer of consumer goods who is damaged by a failure to comply with any obligation under this chapter or under an implied or express warranty or service contract may bring an action for the recovery of damages and other legal and equitable relief. . . . (d) If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.”

“The

trial court has ‘broad authority’ to determine the amount of a reasonable attorneys’ fees. *PLCM Group v.*

Drexler (2000) 22 Cal.4th 1084, 1095. “[T]he fee setting inquiry in California ordinarily begins with the ‘lodestar,’ i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate.” (Id. [“California courts have

consistently held that a computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys' fee award."].) "Testimony of an attorney as to the number of hours worked on a particular case is sufficient evidence to support an award of attorney fees, even in the absence of detailed time records." *Martino v. Denevi* (1986) 182 Cal. App. 3d 553, 559. "General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." *Premier Medical Management Systems, Inc. v. California Ins. Guarantee Ass'n* (2008) 163 Cal. App. 4th 550, 564.

DISCUSSION

Pursuant

to Civil Code §1794(d), plaintiff requests an order awarding in plaintiff's favor \$20,115.14, consisting of \$15,111.50 in attorney's fees, a 1.1 multiplier, additional \$2150 in attorney's fees to review opposition, draft reply, and appear at hearing, and \$1342.49 in costs and expenses.

Entitlement

Plaintiff

states that on February 17, 2026, the parties reached a settlement via mediation whereby defendant agreed to pay plaintiff \$50,000, which includes compensating plaintiff for the subject vehicle, allowing plaintiff to keep the vehicle, paying a civil penalty, and paying attorney fees, costs, and expenses pursuant to a noticed motion. The parties agreed that plaintiff was the prevailing party for purposes of the motion. See Stephanie Argent decl.

Defendant

does not dispute that plaintiff is the prevailing party.

The

Court finds that plaintiff is the prevailing party.

Reasonableness

Plaintiff

requests \$15,111.50 in attorney's fees, a 1.1 multiplier, and an additional \$2150 in attorney's fees to review opposition, draft reply, and appear at hearing.

The

Court notes that the “billing records” summary started at page 98 out of 120 pages. The Court requests that, in the future, plaintiff’s counsel attaches the billing records as Exhibit 1, rather than at the end.

The

summary of billing records identifies eleven timekeepers at the following rates and hours incurred: Senior partner Carey Wood (\$560/hr. x 5.1 hrs.), associate attorney Bobby Walker (\$440/hr. x 2.2 hrs.), associate attorney Steph Argent (\$430/hr. x 20.4 hrs.), Daisey Hernandez (\$215/hr. x .3 hrs.), Maria Flores (\$215/hr. x .4 hrs.), Jasmine Ochoa (\$215/hr. x 7.3 hrs.), Jonathan Avalos (\$215/hr. x .6 hrs.), Brenda Melendez (\$215/hr. x 1.1 hrs.), Alejandra Seda (\$215/hr. x .4 hrs.), and Maria Chavarin (\$215/hr. x .7 hrs.) for a total of 39.4 hrs., of which 10.8 hrs. were incurred by paralegals Hernandez, Flores, Ochoa, Avalos, Melendez, Seda, and Chavarin.

Counsel

states in her declaration that the fees were incurred as follows: prelitigation efforts, initiating litigation, initial disclosures, preparing for PMQ deposition and taking certificate of non-appearance, motion for sanctions (which the Court notes was denied), mediation, CMC, facilitating settlement, and OSC re dismissal.

In

opposition, defendant argues that the hourly rates are excessive and that the Court should apply the rates from the 2023 “Real Rate Report,” capping senior attorney rates at \$495/hr., associate rates at \$295/hr., and paralegal rates at \$100/hr. Defendant notes that attorney Argent was admitted to the State Bar in December 2024 and has only been practicing “lemon law” since December 2024 and that her billable rate is “shocking” and “not defensible.”

Defendant notes that “the standard lemon law case already involves significant cutting and pasting” and that repetitive lemon law tasks should not take plaintiff’s attorneys such large amount of hours to complete, considering they are self-proclaimed “consumer law experts.” Defendant asserts also that attorney Argent had been an attorney only four months when the case was filed and that some of the billing entries appear to show that she was “learning on the job.” Defendant also suggests that the Court subtract “several duplicative and unreasonable entries,” such as \$1096 for all the time purportedly billed and associated with CW and SA’s claims of “reviewing” the

case with paralegal, "handling attorney," "supervising attorney," and each other; \$406.50 as to OSC for plaintiff's failure to appear; \$708 for clerical or secretarial tasks; and excessive time for preparation of motion. Defendant also argues that a "negative multiplier" is warranted rather than a "positive" one.

See Hector E. Zurita-Cruz decl. and highlighted chart.

In reply, plaintiff reiterates their arguments that the hourly rates and hours incurred are reasonable.

The Court rules as follows: In consideration of the Court's review of the billing entries and defendant's objections, the Court finds that a reduction in hours is warranted as many of the tasks are clerical in nature. The Court also finds merit in defendant's objections as to Wood and Argent's hours spent reviewing case or conferring with each other, hours incurred as to the OSC, and hours incurred as to the motion for attorney's fees.

The Court reduces the hours by three hours as to paralegals and five hours as to attorneys. The Court notes that applying the rates it finds reasonable, the total amount is slightly less than that proposed by defendant. Accordingly, the Court will accept the higher figure that defendant finds reasonable. The Court finds that \$8151 is a reasonable amount for attorney's fees. A multiplier is not warranted. Costs are unopposed.

The motion is GRANTED.

ORDER

The motion is GRANTED.

The Court awards \$8151 in attorney's fees in favor of plaintiff and against defendant FCA US LLC.

The

Court awards \$1342.49 in costs and expenses.

Plaintiff is ordered to give notice of ruling.